

M/s Disha Industries Limited v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 April 2023 · Writ-C No. 35326 of 2014 · **Dismissed as infructuous; additional-security demand not decided.**

HEADNOTE

Writ against a demand notice for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005. In 2014 the Court, without prejudice and following interim protection in a connected similar matter, restrained the respondents from demanding additional security. In 2023 the petition was dismissed as infructuous on the petitioner's statement, without deciding the demand.

FACTUAL SUMMARY

M/s Disha Industries Limited challenged a demand notice dated 2 April 2014 issued by the distribution licensee for additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. The High Court, noting that a similar writ (M/s Supreme Ceramics Limited) had been entertained with interim protection, restrained the respondents from demanding additional security until further orders and directed listing with connected matters. On 6 April 2023 counsel stated that the petition had become infructuous, and it was dismissed accordingly.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security demand

HOLDING

A writ challenging a demand notice for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005 was first met with a without-prejudice interim restraint on the demand, aligned with a connected similar writ; the petition was later dismissed as infructuous on the petitioner's statement, without any determination of the demand. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ADDITIONAL-SECURITY DEMAND UNDER CLAUSE 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS LAWFUL

Petition dismissed as infructuous without a merits decision. ¶ 2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. Writ Petition No. 51844 of 2009, order dated 7.10.2009			court	Referred